NYANGA RURAL DISTRICT COUNCIL
versus
ZIMBABWE RURAL DISTRICT COUNCILS' WORKERS
and
MAPURANGA GADAGA

HIGH COURT OF ZIMBABWE
MUZENDA J
MUTARE, 2 February 2026

Application for Rescission of Judgment

Advocate *R.G. Zhuwarara*, for the applicant
T.E Mudzuri, for the first respondent

MUZENDA J: Applicant Rural District Council is seeking the following relief:

"*IT IS ORDERED THAT*

1. *The application to set aside judgment granted in default be and is hereby granted.*
2. *The order granted to the first respondent on 7 October 2025 in case HCMTC 202/25 be and is hereby rescinded.*
3. *The applicant be allowed to file its Notice of Opposition to case HCMTC 202/25 within ten (10) days of this order.*
4. *Each party to bear its own costs*."

The application is opposed by the first respondent.

1.0 Background Facts

1.1 On 28 July 2025 second respondent *("the Arbitrator) awarded first respondent the following relief:*

1.1.0 Respondent must pay the following to the claimants:

1.1.1 USD 108.378.00 being 15% increase effective July 2020 to September 2024;

1.1.2 USD 2.108.43 being union dues accumulated from July 2020 to September 2024;

1.1.3. USD 16.552.35 being the 25% surcharge from non-members."

2.0 On 6 October 2025 SIZIBA J granted in default of the current applicant the following order:

"*IT IS ORDERED THAT*

2.1 The application for the registration of the arbitral award per GADAGA M. dated 28 July 2025 be and is hereby granted.

2.2 The arbitration award of GADAGA M. of 28 July 2025 be and is hereby registered as an order if this Honourable Court for purposes of execution.

2.3 The first respondent shall pay the applicant US$ 108 378.00 as salary and benefits arrears for the period July 2020 to September 2024 and US$210.43 being union dues for the period July 2020 to September 2024 and US$16 552.35 being service charges for non-members."

3.0 On 27 October 2025 the Sheriff served applicant with a Notice of attachment and the applicant rushed to this court first applying for stay of execution pending the hearing of the application for rescission of judgment. The stay was granted much to the relief of the applicant whose entire fleet of service vehicles had been placed on attachment.

4.0 In its founding affidavit, applicant vehemently contends that the default was not wilful. In principle, applicant avers that the notice of the application for registration of the award under HCMTC 202/25 was not properly served. Applicant was no longer using email address nyangardc@gmail.com which first respondent used. To use applicant's words "*it has since stopped using nyangardc@gmail.com for official purposes for security reasons*." As a result, applicant added that it did not disregard nonchalantly the court process. Applicant further averred that the correct address in use is now info@nyangardc.org.

5.0 On the aspect of prospects of success, applicant went at sea attacking several irregularities pregnant in the 28 July 2025 award. It would therefore seek to expand on such shortcomings on review since its lawyer mistakenly filed an appeal in the Labour Court. Applicant was going to seek the Labour Court's condonation to file an application for review. Applicant also attacked the Arbitrator's award of US$101 409. It further submitted that the first respondent claimed salary increments for workers who were no longer its employees and for others who never worked for it. Apparently, applicant was not happy with the Arbitrator's award. It prayed for the rescission of the registration with costs being in the cause.

6.0 In its opposing papers, first respondent raised preliminary objections which were spelt out as follows:

6(a) Applicant is not being candid with the court and is guilty of non-disclosure. It did not inform the court the truth about the email used by the first respondent. That email was in full use by the applicant and applicant had used in September 2025 the last communication being 28 October 2025 and this non-disclosure should lead to this court declaring applicant not confiding in it.

6(b) The first respondent also attacked the validity of the resolution filed by applicant not being specifically passed in relation to this application for rescission.

As a result, first respondent prayed for the application to be struck off with costs.

7.0 On the merits of the application, first respondent contended that applicant wrongly concentrated on the arbitral award on the prospects of success. Applicant, first respondent added was properly served with the notice. At the time the application for registration was made, there was no valid appeal pending nor was there a review. Applicant had also not sought temporary relief suspending registration of the award. As such, first respondent added further, there was nothing valid to militate against the registration of the award. First respondent went on to further contend that an application for registration of an award is purely administrative. When the appeal before the Labour Court was properly struck off the roll, the arbitral award remained solely extant deserving of registration before this court for purposes of execution. Applicant had therefore not shown on a balance of probabilities why the registration of the award should be rescinded and moved the court to dismiss the application with costs on a legal practitioner-client scale.

8.0 Ruling on points *in limine* raised by the first respondent

First respondent submitted that applicant ought to have been candid with this court on when it stopped using email nyangardc@gmail.com. Failure to do so greatly disadvantaged the applicant and it ought to be punished by having the application being struck off. First respondent also attacked lack of a valid council resolution authorising the deponent to the founding affidavit to represent the applicant for the purposes of seeking rescission of the registration of the award.

It has been repeatedly stated by this court over and over again that litigants should not take it as norm to raise points in *limine* which do not go to the tap root of the relief sought. Preliminary points should not be raised as a red-herring or common practice to deviate from the core issue before the court. The critical issue for determination in *casu* is whether applicant has met the thresh-hold to upset the registration of an award? Any preliminary objections by the first respondent should focus on this fundamental question for decision. Where a preliminary point is not capable of disposing the main matter, it ought not to be raised. First respondent moved the court to have the application struck off, in my view that is not dispositive of the matter because applicant is at liberty in terms of the rules of this court and Practice Directions set in motion by the Chief Justice to rectify the shortcomings and return to court seeking the same relief. The matter must be heard on merits and be finalized. Accordingly, first respondent's points in *limine* are held to be incapable of disposing of the matter, they have no merit and are dismissed.

9.0 ***The question for determination is whether the applicant has met the requirements of rescinding registration of an arbitral award?***

10.0 <u>The law</u>

10.1 The law applicable to recission of a judgment granted in default is now well settled in our jurisdiction. Applicant must establish through its papers that it was not in willful default, that it has a good defence and enjoy a bright prospect of success on the merits and lastly that the application is b*onafide* (See *Dewera Farm* v *Zimbank* 1988 (1) ZLR 238)

10.2 On the aspect of purpose of registration I am persuaded by the argument presented by the first respondent in its heads "in paragraph 24" citing the case of *Biltrans Sevices (Pvt) Ltd* v *The Minister of Public Service, Labour and Social Welfare and 6 Others* (CCZ 16/2016) where the court crisply reiterated the purpose of registering an arbitral award: -

> "*In registering an arbitral award, the High Court and the Magistrates Court are not carrying out a mere clerical function while the registering court may not go into merits of the award, since its duty is to provide an enforcement mechanism and not to usurp the powers of the Labour Court, it must be satisfied before registering an award that all the necessary formalities have been complied with. In Vasco Olympio and 4 Others v Shomer Industrial*

> *Development HH 191/12 CHIWESHE JP (as he then was) at p 1 of the cyclostyled judgment outlining the requirements for registering an arbitral award, stated*:
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> '*The purpose of the registration is merely to facilitate the enforcement of such an order through the mechanism availed to the High Court or the Magistrates Court, namely the office of Deputy Sheriff or the Messenger of Court, respectively. In an application such as the present one, this court is not required to look at the award. All that is required of this court is that must satisfy itself that the award was granted by a competent arbitrator, that the award sounds in money. That the award is still extant and has not been set aside on review or appeal and that the litigants are the parties, the subject of the arbitral award. There must be also be furnished a certificate given under the hand of the arbitrator*."

11.0 Applying the law to the facts

First respondent in all its papers in this matter moved this court to make a finding that applicant was properly served with a notice of set down for the registration of the arbitral award. Applicant on the other hand averred that it used to have that email but has since abandoned it for security reasons. Applicant does not confide in this court as to when it decided to abandon the use of the email used by first respondent. it is applicant who provided its email address to first respondent, the evidence alleged by the first respondent that the email is still in use and was still in use by 25 October 2025 was not refuted by the applicant. The applicant's contention that the email address was now abandoned is deliberately meant to evade the fact that its employees, agents or assignee received the notification of the set down date for the registration of the arbitral award but sat on the notice, presumably to buy time. I am satisfied therefore that applicant was properly served with a notice of set down and did not act. It is therefore my finding that a proper service was done on an appropriate current email address publicly used by the applicant. Applicant was therefore in my view in willful default.

12.0 The next point of importance is whether applicant has bright prospects of success on merit. The merit in this application is that of reversing or rescinding the registration of the arbitral award. Applicant dwelled much impugning the arbitrator's findings. Applicant did not address the requirements for registration as outlined in the Biltrans Services case (supra*)*. Applicant did not address any of those requirements, in other words none of the set requirements are spelt on the aspects of registration came short of the compliance to justify rescinding the

registration. There are thus no prospects on the merits of the application for rescission. What ground hindered the registration of the ward? At the time the registration of the award was done, there was neither an appeal nor review properly before a court to challenge the award. The award was extant and ripe for registration in an appropriate court for purposes of execution. A High Court does not sit as a review or appeal court for arbitral awards. All what is to be on the check list of the court is as set out in the *Biltrans Services* case cited above. First respondent's award adequately satisfied all and SIZIBA J appropriately ascended to the registration.

13.0 DISPOSITION

There is no valid point advanced by the applicant as to why the registration of the award should be rescinded. Applicant was in willful default and lacks prospects of success on the aspects of the registration of the award. The application lacks merit and the following order is returned.

"***The application for rescission of the judgement is hereby dismissed with costs on legal practitioner client-scale."***

Warara & Associates, Applicant's Legal Practitioner

Lawman Law Chambers, 1st Respondent's Legal Practitioner